NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- II)

C.A.(CAA)-118/ND/2021

IN THE MATTER OF SCHEME OF AMALGAMATION:

AMONGST

MINDA TG RUBBER PRIVATE LIMITED
B-64/1, Wazirpur Industrial Area,
New Delhi -110052

... Applicant/Transferor Company

WITH

TOYODA GOSEI MINDA INDIA PRIVATE LIMITED
Plot No.SP2-30 & 31,
RIICO Industrial Area, Majrakath Area,
Neemrana, Rajasthan - 301705

... Non-Applicant /Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on: 16.11.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)

SH. L.N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : Sanjay Grover, Adv.

ORDER

PER SHRI L. N. GUPTA, MEMBER (T)

Under consideration is the Application No. C.A.(CAA)118/ND/2021 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening and holding the meeting of Shareholders and Creditors in relation to the Transferor Company for approval of the 'Scheme of Amalgamation' (hereinafter called as **'Scheme'**) which shall take effect from the Appointed Date of 01.04.2022.

2. That Minda TG Rubber Private Limited (hereinafter referred to as the **"Transferor Company"**), having CIN U29253DL2015PTC275475 is a private limited company incorporated under the Companies Act, 2013 on 14.01.2015. The registered office of the Transferor Company is situated at B-64/1, Wazirpur Industrial Area, New Delhi-110052.

3. The authorised share capital of the Transferor company is Rs.51,63,45,060/-(Rupees Fifty-One Crore Sixty-Three Lakh Forty-Five Thousand and Sixty only) which is divided into 5,16,34,506 Equity Share of Rs.10/- each. The issued, subscribed and paid-up Share Capital of the Transferor company is Rs.51,63,45,060/- (Rupees Fifty-One Crore Sixty-Three Lakh Forty-Five Thousand and Sixty only), which is divided into 5,16,34,506 equity shares of Rs.10/- each.

4. That Toyoda Gosei Minda India Private Limited (hereinafter referred to as the **"Transferee Company"**) having CIN U28111RJ2008PTC026385 is a company incorporated under the Erstwhile Companies Act, 1956 on 17.04.2008. The company was initially incorporated under the name and style of 'Toyda Gosei India Private Limited', with Registrar of Companies, Rajasthan. The name of the company was changed to 'Toyoda Gosei Mindia India Private Limited' on 29.11.2011 and a fresh certificate of incorporation dated 29.11.2011 was issued. The same is annexed with the present application. The registered office of the Transferee Company is situated at Plot No. SP2-30 & 31, RIICO Industrial Area, Majrakath Area, Neemrana, Rajasthan - 301705.

5. The authorised share capital of the Transferee company is Rs.5,10,00,00,000/- (Rupees Five Hundred Ten Crores) which is divided into 51,00,0,000 Equity Shares of Rs.10/- each. The issued, subscribed and paid-up Share Capital of the Transferee company is Rs.5,10,00,00,000/- (Rupees Five Hundred Ten Crores) which is divided into 51,00,0,000 Equity Shares of Rs.10/- each.

6. That the present Petition has been filed by the Transferor Company (hereinafter referred to as the **'Applicant Company'**) through and by Mr. Ravi Shankar Gupta, who is the Managing Director of the Applicant Company and has been authorised vide Board Resolution dated 28.04.2021. That the Registered office of the Transferor Company is in Delhi and therefore, the

jurisdiction for filing the present application in respect of the Transferor Company lies with this Bench. The registered office of Transferee Company is in Rajasthan which falls under the jurisdiction of Hon'ble, NCLT Jaipur. Hence, appropriate application shall be filed accordingly. The direction passed vide this order shall be confined to the Applicant/Transferor Company only.

7. It is seen from the records that the Board of Directors of the Applicant Company vide their board meeting held through VC on 28.04.2021 (Pg.182-148) have approved the proposed '**Scheme of Amalgamation'**.

8. It is stated by the Applicant Company that the aforesaid Scheme of Amalgamation will result in the following advantages:

a) Achieving business and administrative synergies.

b) Consolidation and simplification of the shareholding structure, cost savings/synergies resulting from rationalization, standardization and simplification of business processes.

c) Improved organizational capability arising from pooling of financial resources.

d) Avoiding un-necessary duplication of costs of administration, distribution, selling and marketing and reduction in legal and regulatory compliances.

e) Maximize the overall shareholders value by strengthening its core competencies"

9. It is further stated that upon the scheme becoming effective, the transferee company shall without any further application, act or deed, issue

and allot fully paid-up equity shares to the shareholders of the Transferor Company as on the Record Date in the following manner:

> *"100 (One Hundred) fully paid up Equity Shares of Toyoda Gosei Minda India Private Limited of the face value of Rs.10/- (Rupees Ten each) against 156 (One Hundred and Fifty Six) fully paid up Equity Shares of the face value of Rs.10 (Rupees Ten) of Minda TG Rubber Private Limited."*

10. That the Applicant Company has also placed on record the latest audited Financial Statement for the Financial Year 31st March 2021 (Pg. 139-181) and the Certificate from the Statutory Auditors conforming that their Accounting Standards are in conformity with the provision of Section 133 of the Companies Act 2013.

11. That the Applicant Company has filed affidavit in compliance of Section 230(2)(a) of Companies Act, 2013 by stating that there is no investigation and proceeding pending against the Applicant/Transferor Company.

12. That the position regarding the Applicant Company's no. of Shareholders and Creditors and their Consent through Affidavits is summarised below :

Company	**No. of Equity Share holders**	**Percentage of Shareholders given Consent (in value)**	**No. of secured Creditors**	**Percentage of secured Creditors given Consent**	**No. of Unsecured Creditors**	**Percentage of Unsecured Creditors given consent**
Minda TG Rubber Pvt. Ltd. (Applicant Company)	2	100%	NIL	N.A.	109	25 in number 90.72% (in value)

13. That the 100% Equity shareholders of the Applicant Company have given 'No Objection' to the Scheme on respective Affidavits (Page 185-194). Therefore, the requirement of convening the Meetings of Shareholders in respect of the Applicant Company is dispensed with.

14. Since there are no preference shareholders in the Applicant Company, therefore, the requirement of convening their meeting does not arise.

15. Since there are no Secured Creditors in the Applicant Company, therefore, the requirement of convening or holding their meeting does not arise.

16. It is submitted that there are 109 Unsecured Creditors in the Applicant Company, against which 25 Unsecured Creditors in number holding 90.72% in value of debt have given their consent to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Unsecured Creditors in respect of the Applicant Company is dispensed with.

17. **The Application is allowed in terms of above order in respect of the Transferor/ Applicant Company only.**

Sd/-
(L. N. Gupta)
Member (T)

Sd/-
(Abni Ranjan Kumar Sinha)
Member (J)